

Syed Avesh Ahmad v. State of U.P. and Another

Allahabad High Court · Single Judge · 8 February 2024 · 2024:AHC:22730 · Application U/S 482 No. 36795 of 2023 · **Section 482 Cr.P.C. application dismissed; s.135 proceedings not quashed.**

HEADNOTE

A section 482 Cr.P.C. application to quash the charge-sheet, summoning order and entire proceeding under section 135 of the Electricity Act, 2003 was dismissed. Checking was said to have found an additional cable from the L.T. line at the applicant's residence besides connection no. 172337. Disputed questions of fact cannot be decided under section 482; only a prima facie case is to be seen. Applying the Bhajan Lal guidelines and Neeharika, R.P. Kapur, P.P. Sharma and Zandu Pharmaceutical, the Court held that a prima facie offence was made out and that guilt is for trial.

FACTUAL SUMMARY

Syed Avesh Ahmad, a retired Circle Officer of the U.P. Police, applied under section 482 Cr.P.C. to quash the charge-sheet dated 23 June 2021, the summoning order dated 12 October 2021, and the entire proceeding of Case No. 1272 of 2021 (State v. Syed Avesh Ahmad) arising out of Case Crime No. 607 of 2019 under section 135 of the Electricity Act, 2003, Police Station Anti Power Theft, Prayagraj, pending before the Special Judge E.C. Act, Allahabad. He said checking had taken place at a neighbour's house; when he objected he was wrongly implicated without following the Electricity Supply Code; he had never committed the alleged offence and no prima facie case was made out.

The Additional Government Advocate said checking found an additional cable connected from the L.T. line, other than connection no. 172337, at the applicant's residence; after investigation a charge-sheet was filed and the court below had rightly summoned him.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

section 135 theft prosecution — 482 quash refused where a prima facie case is made out

QUESTION

Can section 482 Cr.P.C. quash a charge-sheet and summoning order in a section 135 Electricity Act prosecution where the record is said to disclose a prima facie case of an additional L.T. cable at the accused's residence?

HOLDING

No. From the record it could not be said that no offence was made out. All submissions related to disputed questions of fact, which cannot be adjudicated under section 482 Cr.P.C.; at that stage only a prima facie case is to be seen. The application did not fall under the Bhajan Lal guidelines, followed with Neeharika, R.P. Kapur, P.P. Sharma and Zandu Pharmaceutical: only cases in which no prima facie case is made out can be considered under section 482. Whether the alleged offence was committed is for evidence and trial. The application was dismissed. ¶ 5-9

FLAG Source PDF also contains listing/adjournment orders of 31.10.2023 and 30.11.2023; the operative dismissal is 08.02.2024. The applicant invoked non-compliance with the Electricity Supply Code; the Court did not construe any Code clause.

PRINCIPLE TAGS

section-482-sparingly-at-pre-trial-stage At the s.482 stage only a prima facie case is seen; disputed facts (wrong implication after objecting to a neighbour's checking; additional L.T. cable besides connection no. 172337) cannot be adjudicated. Applying Bhajan Lal, Neeharika, R.P. Kapur, P.P. Sharma and Zandu Pharmaceutical, the charge-sheet and summoning in the s.135 case were not quashed. Same cluster as SCJ-173, SCJ-343, SCJ-538. Lead

authorities: *State of Haryana v. Bhajan Lal*, *M/s Neeharika Infrastructure Pvt. Ltd. v. State of Maharashtra*, *R.P. Kapur v. State of Punjab*, *State of Bihar v. P.P. Sharma*, *Zandu Pharmaceutical Works Ltd. v. Mohd. Saraful Haq*. ¶ 5-8

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — GUILT UNDER SECTION 135 AND WHETHER THE APPLICANT WAS WRONGLY IMPLICATED AFTER OBJECTING TO CHECKING AT A NEIGHBOUR'S HOUSE

Left to evidence and trial. The Court held that disputed questions of fact cannot be decided under section 482. ¶ 3, 5, 8

NOT DECIDED — WHETHER THE RELEVANT PROVISIONS OF THE ELECTRICITY SUPPLY CODE WERE NOT FOLLOWED

Raised by the applicant; the Court did not construe any Code clause. ¶ 3

TABLE OF AUTHORITIES

AUTHORITY	PROPOSITION	HOW TREATED	CITED BY	TREATMENT
<i>State of Haryana v. Bhajan Lal</i> 1992 Supp (1) SCC 335 Supreme Court	Illustrative categories in which inherent power under s.482 Cr.P.C. may be exercised to quash (quoted in full).		Court	Followed
<i>M/s Neeharika Infrastructure Pvt. Ltd. v. State of Maharashtra</i> AIR 2021 SC 1918 Supreme Court	Only those cases in which no prima facie case is made out can be considered on an application under section 482 Cr.P.C.		Court	Followed
<i>R.P. Kapur v. State of Punjab</i> AIR 1960 SC 866 Supreme Court	Only those cases in which no prima facie case is made out can be considered on an application under section 482 Cr.P.C.		Court	Followed
<i>State of Bihar v. P.P. Sharma</i> 1992 SCC (Cr.) 192 Supreme Court	Only those cases in which no prima facie case is made out can be considered on an application under section 482 Cr.P.C.		Court	Followed
<i>Zandu Pharmaceutical Works Ltd. v. Mohd. Saraful Haq</i> 2005 SCC (Cr.) 283 Supreme Court	At the quashing stage only a prima facie case is examined (para 10 as cited).		Court	Followed